

**BEFORE THE
FEDERAL MARITIME COMMISSION**

20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH &
BEYOND INC., *Complainant*,

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT
(FMC#011982) consisting of EVERGREEN MARINE
CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK)
LIMITED, ITALIA MARITTIMA SpA, EVERGREEN
MARINE (HONG KONG) LTD., AND EVERGREEN
MARINE (SINGAPORE) PTE. LTD., *Respondents*.

DOCKET NO. 24-12

**JOINT STATUS REPORT
AND MOTION TO EXTEND DEADLINES**

Pursuant to 46 C.F.R. § 502.102, Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc¹ (“BBBY”) and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen” or “Respondents”) (BBBY, collectively with Evergreen, the “Parties”), by their respective undersigned counsel, have conferred and hereby submit this joint status report and motion to extend deadlines, and in support thereof state that good cause for the requested extension exists, as follows:

1. On January 16, 2026, the Presiding Officer issued the Sixth Amended Scheduling Order with the following schedule of deadlines:

Deadline to depose Complainant’s corporate witness	January 23, 2026
Complainant’s deadline to submit supplemental expert report with respect to corporate witness testimony	February 6, 2026

¹ BBBY filed a change of name certificate with the New York State Division of Corporations, State Records, and Uniform Commercial Code on September 21, 2023 by and through which Bed Bath & Beyond Inc. changed its corporate name to 20240930-DK-Butterfly-1, Inc.

Respondent's deadline to submit supplemental expert report with respect to corporate witness testimony	February 20, 2026
Expert deposition deadline	March 13, 2026
Meeting to discuss Joint Prehearing Statement, including joint statement of material facts, must be held by this date; hearing exhibits must be exchanged	March 27, 2026
Joint Prehearing Statement, objections to exhibits, and motions for confidential treatment are due	April 17, 2026
Prehearing conference to be held at 800 North Capitol Street, NW, Washington, DC at 10:30 AM	May 1, 2026

2. The parties completed the deposition of Complainant's corporate witness, exchanged supplemental expert reports, and completed expert depositions on or before the respective deadlines set forth in the Sixth Amended Scheduling Order.

3. At the close of discovery and in accordance with the Sixth Amended Scheduling Order, on February 20, 2026, counsel for the parties held a meeting to discuss the Joint Prehearing Statement, including the joint statement of material facts. At this meeting, the Parties discussed a drafting timeline, where BBY would provide its statement of material facts by March 10, 2026, and then Evergreen would provide its own statement of material facts and a section of disputed facts within the following two weeks.

4. On March 10, 2026, Complainant provided Respondent with its initial draft of the introduction of issues and stipulated fact sections of the joint prehearing statement along with Complainant's initial draft exhibit list. Complainant's initial draft contained approximately 339 statements of fact and identified approximately 150 exhibits.

5. On March 27, Complainant provided an updated Exhibit List citing additional documents from its March 10 draft, which cited to bates-stamped documents from discovery, public documents (with URLs), or discovery responses. Complainant did not number its exhibits as of that time, with the intention that the parties might be able to de-duplicate exhibits and avoid entering the

same exhibits with conflicting numbers.

6. Upon receipt of Respondents' numbered Exhibit List containing pdfs of the exhibits in addition to the proposed exhibit list itself, Complainant later revised its exhibit list to include full documents families for the documents previously cited (for context) and provided an updated numbered list along with PDFs and natives of its exhibits on April 7, 2026. Complainant informed Respondent that it has included a list of exhibits and corresponding numbered files, largely comprised of produced documents or public documents, and have made additions to include full families of initially cited documents or cited within BBY's March 10th drafts and additional diligence. Respondents are working to reconcile the list and folder of files.

7. Respondents have also been working diligently to prepare its prehearing submissions, including its portions of the joint prehearing statement of material facts. On March 27, 2026, Respondents provided Complainant with a list of 203 exhibits along with a corresponding electronic file folder. As of the preparation of this motion, Respondents' draft statement of material facts contains over 450 enumerated paragraphs of material facts. Respondents are also reviewing Complainant's 339 proposed statements of material facts to identify facts to which Respondents might stipulate.

8. Evergreen provided BBY with a draft of its initial statement of facts on April 7, 2026, containing 482 paragraphs across 53 pages.

9. It presently appears that there may be some overlap of facts and exhibits that would permit stipulation by the parties and consolidation. Further review, however, is necessary by both parties to determine whether and to what extent such stipulations can be made.

10. Claimant has sought approximately \$86,000,000 in reparations in this case. Given the scope and complexity of the claims and defenses, and the challenges posed by the large number of statements of facts and exhibits, the Parties believe it would be most effective, efficient and

preserve the Parties' due process rights by allowing the Parties additional time to review the parties' respective statements of facts and exhibits and to confer regarding same with the goal of stipulating to facts and streamlining the conclusion of this proceeding.

11. Under the circumstances, the parties respectfully request that the deadline to submit the Joint Prehearing Statement, objections to exhibits and motions for confidential treatment be extended to May 18, 2026.

12. Counsel for the Parties agree that, under the circumstances, this Joint Status Report and Motion to Extend Deadlines is warranted for good cause and that extreme prejudice to both Parties would result if an extension of deadlines is not granted.

13. In making this joint Motion, the Parties here have limited their request to the smallest amount of time in which they presently believe they can feasibly complete the Joint Prehearing Statement, objections to exhibits and motions for confidential treatment.

14. Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

15. Pursuant to 46 CFR § 502.71(a), counsel for Complainant and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, Complainant Bed Bath & Beyond Inc. and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd., pray that their Joint Motion to Extend Deadlines be granted.

Dated: April 9, 2026

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s/ Mohini P.B. Rarrick

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Respectfully submitted,

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